

The Complaint does not contain facts to support the application of the doctrine of equitable tolling.

Tolling Due to Rejection of Electronic Filing

Alternatively, Plaintiff argues that the method of electronically filing the Complaint on October 16, 2025, is considered the filing date if there is a technical problem with the court's filing system on that date under California Rules of Court, rule 2.259. However, this rule is not applicable to a complaint or any other initial pleading. (Cal. Rules of Court, rule 2.259(c).) The same argument, however, may be supported under another statute or rule of court, such as Code of Civil Procedure, section 1010.6, subdivision (e)(4)(E). The information to support such an argument is not present in the Complaint before the court, thus, an amendment is necessary.

The facts that support Plaintiff's arguments made in opposition to the demurrer to toll the statute of limitations are not judicially noticed or stated in the four corners of the complaint. Accordingly, the demurrer is sustained and leave to amend is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** June 17, 2026.
(Judge's initials) (Date)

(20)

Tentative Ruling

Re: ***Wheeler v. Spane et al.***
Superior Court Case No. 25CECG02378

Hearing Date: June 18, 2026 (Dept. 403)

Motion: Defendants Mike and Holly MacNeill's Demurrer to Second Amended Complaint

Tentative Ruling:

To sustain as to the seventh causes of action only, without leave to amend. To overrule as to the first, third, fourth, fifth, sixth and eighth causes of action. (Code Civ. Proc., § 430.10, subd. (e).) Demurring parties shall file their answer to the Second Amended Complaint ("SAC") within 10 days of service of the order by the clerk.

Explanation:

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Facts and allegations in the MacNeills' cross-complaint are irrelevant, and improperly argued in this demurrer. Such facts will not be considered.

Here the demurrer is brought on the ground that the SAC fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) "Objections that a complaint is ambiguous or uncertain, or that essential facts appear only inferentially, or as conclusions of law, or by way of recitals, must be raised by special demurrer, and cannot be reached on general demurrer." (*Johnson v. Mead* (1987) 191 Cal.App.3d 156, 160)

Discussion

First Cause of Action for Negligence

The elements of a cause of action for negligence are: (1) the defendant's obligation to conform to a certain standard of conduct (duty); (2) failure to conform to that standard of conduct (breach of duty); (3) a reasonably close connection between the defendant's conduct and resulting injuries (proximate causation); and (4) actual loss (damages). (*Union Pacific Railroad Co. v. Superior Court* (2024) 105 Cal.App.5th 838, 852.)

The demurrer to this cause of action is brought on the ground that the SAC admits that the MacNeills did not own the property, were tenants of that property and that the Andersons had the fence installed and paid for themselves. (SAC ¶¶ 8, 9, 20 and 25.)

While the MacNeills in their discussion focus solely on claim as it pertains to construction of the concrete fence, the cause of action is also based on damage to Elisa's large yard umbrella, which Mike and Holly broke by pulling and yanking on it during Elisa's party. (SAC ¶¶ 52-53.) Even if the MacNeills are correct about the fence, a general demurrer does not lie to only part of a cause of action. If there are sufficient allegations to entitle plaintiff to relief, other allegations cannot be challenged by general demurrer. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167.) The demurrer to this cause of action is overruled since the MacNeills ignore this separate basis for the cause of action.

Moreover, with regards to the fence, contrary to the MacNeills' contentions, the SAC includes allegations that the MacNeills controlled and paid for the fence removal and construction. (SAC ¶¶ 24-26, 28, 29, 31.) This is sufficient to allege that they assumed a duty to plaintiffs to use care "in the management of his or her Property ..." (Civ. Code, § 1714, subd. (a).)

Third Cause of Action for Defamation

The essential elements of a cause of action for defamation are: (1) that the defendant made a statement published to a 3rd party; (2) that this statement is false; (3) that this statement is defamatory; (4) that the statement is unprivileged; and (5) that the statement has a natural tendency to injure or cause special damage. (*Sanchez v. Bezos* (2022) 80 Cal.App.5th 750, 763.)

This cause of action is premised on the allegation that "Mike, Holly, and Felmus have also told people, including Clovis Police Officers, Elisa's landscaper Gustavo, Elisa's party guests, Wadsack, Wadsack's foreman, and Wadsack's crew, that Plaintiffs are enablers of, complicit in, and are in fact pedophiles. Each Defendants has made statements about Plaintiffs while third parties were present related to Plaintiffs' being complicit in and enablers of child pornography." (SAC ¶ 60.) Plaintiffs allege that these statements are false – they have never been engaged in or complicity in child pornography. (SAC ¶ 63.)

The demurrer is brought on the basis that the alleged statements are true – based on dictionary definitions of "enable," "complicit," "pedophile." As for the allegations that Mike and Holly communicated to others that plaintiffs were enablers of Jim's alleged child pornography, the demurrer is brought on the ground that such statements are in fact true.

That may be defendants' contention, but these are issues that will have to be resolved by the trier of fact. Plaintiffs' allegations must be accepted as true for the purpose of ruling on the demurrer. (*Hacker v. Homeward Residential, Inc.* (2018) 26 Cal.App.5th 270, 280.) The SAC alleges sufficient facts to state a cause of action for defamation.

Fourth Cause of Action for Invasion of Privacy

The elements of a common law invasion of privacy claim are intrusion into a private place, conversation, or matter, in a manner highly offensive to a reasonable person. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259, 29 Cal.Rptr.3d 521.) In determining the existence of “offensiveness,” one must consider: “(1) the degree of intrusion; (2) the context, conduct and circumstances surrounding the intrusion; (3) the intruder's motives and objectives; (4) the setting into which the intrusion occurs; and (5) the expectations of those whose privacy is invaded.” (*Sanchez-Scott v. Alza Pharmaceuticals* (2001) 86 Cal.App.4th 365, 377 [103 Cal. Rptr. 2d 410]. (*Mezger v. Bick* (2021) 66 Cal.App.5th 76, 86–87.)

This cause of action is premised on the allegations of the MacNeills staring into plaintiffs' backyard. Under most circumstances, looking into a neighbor's yard, ordinarily plainly visible, would probably not be an invasion of privacy. But in this case the SAC alleges that the MacNeills participated in the removal of the fence separating the properties, against plaintiffs' wishes and without their consent, resulting in visibility into plaintiffs' backyard that under ordinary circumstances would not exist. (SAC ¶¶ 24-28.) The MacNeills took advantage of that increased visibility to watch plaintiffs in their yard. (SAC ¶ 32.) This is sufficient to allege that defendants “‘penetrated some zone of physical or sensory privacy surrounding’ [them] and that [they] had an objectively reasonable expectation of privacy.” (See *Belen v. Ryan Seacrest Productions, LLC* (2021) 65 Cal.App.5th 1145, 1163.)

The cause of action is also premised on defendants Kertson and Spane sharing Elisa Wheeler's private medical and financial information with the MacNeills. (SAC ¶ 68.) However, the intrusion and disclosure by Kertson and Spane is not wrongdoing by the MacNeills. While this basis for the cause of action is not sufficient, the demurrer is overruled in light of the looking-into-the-backyard allegations.

Fifth Cause of Action for Intentional Infliction of Emotional Distress

Though the MacNeills purport to demur to this cause of action, it is never discussed in their moving papers. Since they fail to make any argument in connection with this cause of action, the demurrer is overruled.

Sixth Cause of Action for Trespass

“Trespass is an unlawful interference with possession of property.” (*Staples v. Hoefke* (1987) 189 Cal.App.3d 1397, 1406, 235 Cal.Rptr. 165.) The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. (See CACI No. 2000.) (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 261–262.)

The demurrer is based on the contention that “the MacNeill's were never the owners of the property and the MacNeill's no longer occupy as tenants the Loyola

Property. (FACC ¶ 28.)" (MPA 8:14-16.) However, it is improper to base a demurrer on facts alleged in the demurring party's separate pleading. And the fact that the MacNeills do not currently occupy the neighboring property is irrelevant if they caused a trespass when they were in possession of the neighboring property. The moving papers submit no proper basis for sustaining the demurrer to this cause of action.

Seventh Cause of Action for Injunctive Relief

This cause of action is premised on the allegation that the Andersons and MacNeills caused to be constructed a fence or wall that intrudes six inches into Elisa's backyard. (SAC ¶¶ 87, 89.)

The demurrer is sustained because injunctive relief is not a cause of action, but a remedy. (*HNHPC, Inc. v. Department of Cannabis Control* (2023) 94 Cal.App.5th 60, 73.) Plaintiffs can seek this relief in the SAC's prayer, but it is not a standalone cause of action.

Eighth Cause of Action for Declaratory Relief

Plaintiffs seek declaratory relief regarding the encroaching concrete fence erected by the MacNeills and Andersons. They seek "a judicial determination regarding that location and encroachment of the fence in relation to the property line, whether the concrete fence is a shared boundary, and the parties' respective rights and duties related to the concrete fence and other conditions pertaining to the concrete fence."

Any person who desires a declaration of his or her rights or duties with respect to another may in cases of actual controversy relating to the legal rights and duties of the respective parties seek a declaration. (Code Civ. Proc., § 1060.) Claims for declaratory relief become moot when an event occurs with "deprives the controversy of its life." (*Roger v. County of Riverside* (2020) 44 Cal.App.5th 510, 530.)

The demurrer is again based on the purported fact that the MacNeills no longer live as tenants on the Loyola property. But again, they cannot base a demurrer on facts extraneous to the pleading under attack, and only set forth in their own separate pleading.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on June 17, 2026
(Judge's initials) (Date)